



Notification Waiver Determination

Australian Venue Co – assets of The Breakwater, Hillarys and Print Hall, Perth, WA

Acquisition	AVC Operations Pty Limited (Australian Venue Co) applied for a notification waiver in respect of its proposed acquisition of substantially all of the assets of the licensed venues trading as The Breakwater and Print Hall (including the exclusive right to carry on the business in succession of the vendor and the benefit of the existing lease) from Wintime Nominees Pty Ltd and Sunliner Holdings Pty Ltd respectively, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	24 September 2026

Parties to the Acquisition	Australian Venue Co operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as bars, clubs and licensed restaurants. Its venues are individually branded and are mostly located in inner-city and metro areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. The Breakwater is a licensed venue located at 203/58 Southside Drive, Hillarys WA 6025. The venue is a waterfront destination featuring multiple bars, a restaurant, entertainment facilities (i.e. bowling and shuffleboard) and function rooms. Print Hall is a multi-level licensed venue located at Brookfield Place, 125 St Georges Terrace, Perth WA 6000. The venue is a heritage-listed entertainment precinct featuring multiple bars, a cellar wine bar, restaurants and a rooftop terrace.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered information provided by the applicant and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information provided in the application, including the parties' revenue in Australia, the ACCC considers that, if the Acquisition were put into effect, the notification thresholds would be met. The ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information provided, given: there is horizontal overlap between Australian Venue Co's existing venues and Print Hall and The Breakwater in the

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	supply of dining, function and on-premises liquor services at pub-style venues and other retail hospitality venues in the Perth metropolitan area b. Australian Venue Co already owns venues in the Perth CBD which may closely compete with Print Hall c. the extent to which Australian Venue Co is likely to be constrained by alternative suppliers of dining, function and on-premises liquor services in the local areas surrounding Perth CBD and Hillarys post-acquisition is uncertain. The ACCC considers that these potential competition issues warrant consideration through the notification process, including via consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act